

		Accordingly, the demurrer to the ninth cause of action is SUSTAINED. Plaintiffs have 20 days leave to amend. Demurring party to give notice.
2	Brown vs. Colony Crest De Ville Community Association 2023-01324410	Demurrer to Amended Complaint Defendants Dave Brown and Linda Brown’s (Defendants) Demurrers to the Third Amended Complaint (TAC) of Plaintiffs Leland Brown and Kathryn Brown (Plaintiffs) are OVERRULED. At the pleading stage, the Court must liberally construe the complaint, drawing all reasonable inferences in favor of Plaintiffs’ asserted claims. <i>Liapes v. Facebook, Inc.</i> (2023) 95 Cal.App.5th 910, 919. “Where, as here, the demurrer is based on a claim that the pleading does not state facts sufficient to constitute a cause of action, if it appears that the plaintiff is entitled to any relief at the hands of the court against the defendants, the complaint will be held good, although the facts may not be clearly stated, or may be intermingled with a statement of other facts irrelevant to the cause of action shown, or although the plaintiff may demand relief to which he is not entitled under the facts alleged. [. . .] In reviewing the legal sufficiency of a demurrer, we are not concerned with plaintiff’s ability to prove the allegations of the complaint, or the possible difficulties in making such proof.” <i>Berry v. Frazier</i> (2023) 90 Cal.App.5th 1258, 1268. <u>1st Cause of Action - Breach of Contract</u> In this cause of action, Plaintiffs allege they reached a settlement of the easement dispute with Defendants at mediation on 8/18/22. Defendants breached the settlement agreement by placing a structure in the easement area which is not able to be temporarily removed and blocks Plaintiffs’ access the drainage system within the easement area. (TAC, ¶¶ 24-29.)

Defendants contend this claim is not viable because the element of damage has not been alleged. Specifically, they argue no additional flood damage has occurred since their alleged breach of the settlement agreement, which released all prior claims arising from flood damage.

The elements of breach of contract are “(1) the existence of the contract, (2) plaintiff's performance or excuse for nonperformance, (3) defendant's breach, and (4) the resulting damages to the plaintiff.” *D'Arrigo Bros. of California v. United Farmworkers of America* (2014) 224 Cal.App.4th 790, 800.

Here, Plaintiffs have adequately alleged the existence of a settlement agreement and Defendants breach thereof by building a non-temporary structure on the easement.

Plaintiffs have also adequately alleged the element of damages, because the alleged obstruction of their alleged right to access the property pursuant to the easement and settlement agreement may satisfy the element of damage. Moreover, Plaintiffs allege they have been harmed by being unable to inspect, access, and maintain the drainage system which is necessary to prevent likely future harm.

Therefore, the demurrer is overruled as to this cause of action.

4th Cause of Action – Nuisance

In this cause of action, Plaintiffs allege Defendants have built structures and laid brick on the easement, which has affected the natural flow of water and precluded access to the drainage system which is necessary to prevent flooding.

Defendants contend this claim lacks merit because there is no allegation any damage has been caused since the August 2022 settlement agreement, which released all prior claims between the parties arising from water damage.

The elements of private nuisance are as follows:

“First, the plaintiff must prove an interference with its use and enjoyment of its property. Second, the invasion of the plaintiff’s interest in the use and enjoyment of the land must be substantial, i.e., it caused the plaintiff to suffer substantial actual damage. Third, the interference with the protected interest must not only be substantial, it must also be unreasonable, i.e., it must be of such a nature, duration,

or amount as to constitute unreasonable interference with the use and enjoyment of the land.” *Today’s IV, Inc. v. Los Angeles County Metropolitan Transportation Authority* (2022) 83 Cal.App.5th 1137, 1176. “With respect to the substantial damage element, the degree of harm is to be measured by the effect the invasion would have on persons of normal health and sensibilities living in the same community. If normal persons in that locality would not be substantially annoyed or disturbed by the situation, then the invasion is not a significant one, even though the [idiosyncrasies] of the particular plaintiff may make it unendurable to him.” *Ibid*.

Here, Plaintiffs have adequately alleged facts showing that a reasonable person would be substantially annoyed or disturbed by their inability to access the easement to inspect or maintain the drainage system in order to prevent future flooding. Therefore, the demurrer is overruled as to this cause of action.

6th Cause of Action - Promissory Fraud

In this cause of action, Plaintiffs allege Defendants falsely represented they intended to honor the August 2022 settlement agreement, when in fact Defendants had no intent to honor the settlement agreement and they promptly violated it by installing a non-temporary structure on the easement. Plaintiffs allege Defendants deliberately signed the settlement agreement and made false representations therein to prevent Plaintiffs from inspecting the drainage system, thereby forcing Plaintiffs to sell their home due to fear of flooding.

Defendants argue there are insufficient facts demonstrating their intent not to perform the August 2022 settlement, and damages have been inadequately alleged because no further flooding has occurred since the August of 2022 release of claims.

“Promissory fraud is a subspecies of the action for fraud and deceit. A promise to do something necessarily implies the intention to perform; hence, where a promise is made without such intention, there is an implied misrepresentation of fact that may be actionable fraud. In a promissory fraud action, to sufficiently allege defendant made a misrepresentation, the complaint must allege (1) that defendant made a representation of intent to perform some future action, i.e., the defendant made a promise, and (2) the defendant did not really have that intent at the time that the promise was made, i.e.,

		the promise was false.” <i>Beckwith v. Dahl</i> (2012) 205 Cal.App.4th 1039, 1060. “Something more than nonperformance is required to prove the defendant’s intent not to perform his promise. If plaintiff adduces no further evidence of fraudulent intent than proof of nonperformance of a promise, he will never reach a jury.” <i>Magpali v. Farmers Group, Inc.</i> (1996) 48 Cal.App.4th 471, 481. “It is insufficient to show an unkept but honest promise, or mere subsequent failure of performance.” <i>Riverisland Cold Storage, Inc. v. Fresno-Madera Production Credit Assn.</i> (2013) 55 Cal.4th 1169, 1183. In the TAC, Plaintiffs have adequately alleged, for purposes of the pleading stage, that Defendants did not intend to honor the agreement and entered the agreement as part of the scheme to force Plaintiffs to sell their property. (TAC, ¶ 107.) Therefore, the demurrer is overruled as to this cause of action. Plaintiffs to give notice. Case Management Conference Regardless whether the parties submit on the tentative or not, it appears the case is not at issue as there have been no answers filed to Plaintiff’s third amended complaint by any defendant as of this time. Accordingly, the Case Management Conference is continued and an Order to Show Cause hearing re Sanctions for Failure to Enter Defaults as to Each Non-Answering Defendant, pursuant to CRC 3.100(g), is set for 05/12/2025 at 1:45 PM in Department C15.
3	Griffin vs. Ken Grody Ford 2023-01329848	Demurrer to Amended Complaint Defendant Ken Grody Ford’s demurrer to the Verified First Amended Complaint (“FAC”) filed by plaintiff Tanner Griffin is OVERRULED in part and SUSTAINED in part. <u>First Cause of Action for Breach of Oral Contract</u> “The elements of a breach of oral contract cause are: ‘(1) existence of the contract; (2) plaintiff’s performance or excuse for nonperformance; (3) defendant’s breach; and (4) damages to plaintiff as a result of the